

BEFORE THE IOWA
BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF	)	DIA NO. 93DPHPS-_____
THE LICENSE TO PRACTICE AS	)	Psy.Inv.No. 93-5_____
A PSYCHOLOGIST OF:	)	
WILLIAM A. DEVORE, Psy.D.	)	INFORMAL SETTLEMENT
Lic. No. 527,	)	
Respondent.	)	

COMES NOW the Iowa Board of Psychology Examiners (the Board) and William A. DeVore, Psy.D. (Respondent) and, pursuant to Iowa Code §§ 17A.10 and 272C.3(4), enter into the following Informal Settlement of the contested case currently on file:

1. Respondent was originally licensed to practice as a psychologist in the state of Iowa on November 10, 1986, and holds license number 527.
2. Respondent's license is current until June 30, 1994.
3. An Emergency Order and Notice of Hearing and Statement of Charges was filed against the Respondent on July 1, 1993.
4. The Board has jurisdiction of the parties and the subject matter.
5. Pursuant to Iowa Code § 154B.8, Respondent agrees to voluntarily surrender his license to practice psychology (see attachment). The Director of Public Health shall accept the surrender of the license.
6. Not earlier than four years after the issuance of an order by the Director of Public Health accepting the surrender, Respondent may apply for reinstatement, whereupon Respondent shall show that the basis for the action no longer exists and

that it will be in the public interest for the license to be reinstated. In addition, the Respondent must comply with the following requirements:

a. Within thirty days of the order accepting the surrender, each person responsible for Respondent's treatment shall submit to the Board a written summary of Respondent's current mental condition beginning August 1, 1993, through the date of the report, which shall include a detailed summary of: 1) information forming the basis of any mental condition diagnosis; 2) prognosis; and 3) recommendations for treatment. These reports shall be deemed confidential pursuant to Iowa Code § 272C.6(4).

b. From the date of the order accepting the surrender through the conclusion of treatment, the mental health professional responsible for treatment of Respondent's mental condition shall submit to the Board on a quarterly basis a written report summarizing the treatment and Respondent's status. At the conclusion of treatment, the mental health professional shall submit a final summary report to the Board. These reports shall be deemed confidential pursuant to Iowa Code § 272C.6(4). At the time of this Informal Settlement, the full nature of the Respondent's current mental condition was not known to the Board. However, the treatment of Respondent's condition shall be commensurate, as defined by the Board, with the gravity of Respondent's illness.

c. Prior to an application for reinstatement, Respondent shall obtain mentoring for professional growth and development from another psychologist who shall, for a period of two years, meet with Respondent on at least a bi-monthly basis, and for an additional period of at least two years meet with the Respondent on a least a monthly basis. Prior to the mentoring, the Respondent shall identify the mentor to the Board, and the Board will provide information to the mentor as to topics which should be addressed during the mentoring. The mentor shall, during the first two years of mentoring, submit reports in writing quarterly to the Board summarizing the mentoring progress. After the first two years, the mentor shall submit these reports biannually. At the termination of the mentoring relationship, the mentor shall submit to the Board in writing a final report summarizing the mentoring progress. All reports required under this subparagraph shall be deemed confidential pursuant to Iowa Code § 272C.6(4).

d. Prior to application for reinstatement, Respondent shall submit to a full psychological assessment by a psychologist approved in advance by the Board. Upon approval, the Board shall provide information to the psychologist regarding relevant issues to be addressed in the evaluation. This evaluation shall both be completed and provided to the Board no more than three months prior to an

application for reinstatement. The evaluation report shall be deemed confidential pursuant to Iowa Code § 272C.6(4).

e. At the time of an application for reinstatement, Respondent shall provide evidence to the Board that he has obtained at least 3 credit hours of graduate-level education in psychological ethics, as well as satisfaction of the continuing education requirements for reinstatement as provided in Board rule 645 Iowa Admin. Code 240.109.

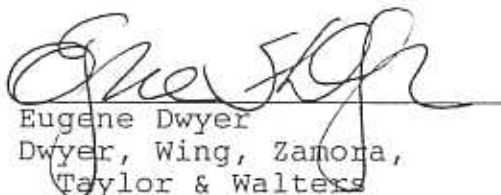
7. This Informal Settlement is subject to approval of the Board. If the Board fails to approve this Informal Settlement, it shall be of no force or effect to either party.

8. This Informal Settlement is voluntarily submitted by the Respondent to the Board for its consideration.



WILLIAM A. DEVORE, Psy.D.
Respondent

Signed and sworn to before me this 23rd day of Aug.,
1993.


NOTARY PUBLIC IN AND FOR THE
STATE OF IOWA

Eugene Dwyer
Dwyer, Wing, Zamora,
Taylor & Walters
125 Kirkwood Blvd.
P.O. Box 904
Davenport, Iowa 52805-0904

Attorney for Respondent

Approved as to form:



LYNETTE A.F. DONNER
Assistant Attorney General
Second Fl., Hoover Building
Des Moines, Iowa 50319

8. This Informal Settlement is accepted by the Iowa Board of Psychology Examiners on this 25th day of August, 1993.

Dated this 25th day of August, 1993.



Janet McDonough, Ph.D.
Chairperson
Iowa Board of Psychology Examiners

Christopher G. Atchison, Director
Iowa Department of Public Health
Lucas State Office Building
Des Moines, Iowa 50319-0075

Dear Mr. Atchison:

You are hereby notified that in accordance with the provisions of section 154B.8, Code of Iowa, this letter shall constitute my written statement of intention to voluntarily surrender the enclosed license to practice psychology, which was heretofore issued to me on the 10th day of November, 1986, as evidenced by license number 527 as recorded in the office of the Iowa Board of Psychology Examiners.

You are further notified that I fully understand that upon your acceptance of this voluntary surrender of my license, such acceptance shall have the same force and effect as an order of revocation.

You are further notified that I hereby affirm my decision not to engage in the practice of psychology in the State of Iowa and I hereby absolve and release the Iowa Department of Public Health and the Iowa Board of Psychology Examiners from any further right, claim, or title to the certificate of license, and to any of the rights, privileges and honors pertaining thereto.

This written statement of my intention to voluntarily surrender my psychology license is being signed by me on

23 AUGUST, 1993, as my own voluntary act and deed.


WILLIAM A. DEVORE, Psy.D.


EUGENE DWYER
Attorney for William DeVore

WITNESS:

Gail Welchman
DATE 8-23-93

BEFORE THE IOWA
BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF
THE LICENSE TO PRACTICE AS
A PSYCHOLOGIST OF:

WILLIAM A. DEVORE, Psy.D.
Lic. No. 527,
Respondent.

DIA NO. 93DPHPS-
Psy.Inv.No. 93-5

EMERGENCY ORDER AND
NOTICE OF HEARING AND
STATEMENT OF CHARGES

TO THE ABOVE-NAMED RESPONDENT:

On June 30, 1993, the Iowa Board of Psychology Examiners received information from Board member Dr. Robert Jones, as designated investigation supervisor, alleging that:

1. Respondent was originally licensed to practice as a psychologist in the state of Iowa on November 10, 1986, and holds license number 527.

2. Respondent's license is current until June 30, 1994.

3. Respondent's current address as reported to the Board is 2466 E. Kimberly Road, Suite A, Davenport, Iowa 52807.

4. On May 11, 1993, an investigator for the Board served Respondent with a Board subpoena for the records of Respondent's patient "Jane Doe". This subpoena is enforceable even without a patient release; however, in this case a client release was supplied in addition to the Board subpoena. The Respondent yet failed to comply with the Board's subpoena. Pursuant to a Petition for Enforcement filed in the Iowa District Court for Scott County on behalf of the Board, Respondent was ordered by the Court, by a Ruling dated June 1, 1993, to comply with the Board's subpoena on or before June 8, 1993, at 8:30 a.m.

Respondent failed to comply with the Court's order to comply with the Board's subpoena. Further, Respondent has failed to cooperate with an investigation being conducted at the Board's direction.

5. Respondent began treatment of a patient, Jane Doe, during April, 1987. Jane Doe remained a client until approximately April 26, 1993. Commencing approximately June 6, 1992, during the period of Jane Doe's treatment, Respondent entered into and engaged in a personal and sexual relationship with Jane Doe, which relationship has extended through approximately April 21, 1993.

6. Statements made by Jane Doe indicate that one or more other current clients of Respondent are or were also engaged in personal and sexual relationships with the Respondent.

7. Based upon observations of Dr. Jones and other information obtained during the investigation, Jane Doe appears to be a credible witness. Further, Respondent's failure to provide the subpoenaed records leads to an inference that the contents tend to substantiate the allegations.

THEREFORE, based upon the above evidence indicating an on-going blatant and unprofessional contempt for the Board and the Court and the significant potential for on-going harm to current clients, and pursuant to Iowa Code § 17A.18(3), the Iowa Board of Psychology Examiners finds that the public health, safety, and welfare would be jeopardized if William DeVore were allowed to continue in the practice of psychology until a hearing can be

conducted. Therefore, the Board finds that the public health, safety, and welfare makes emergency summary suspension imperative.

IT IS HEREBY ORDERED that the license of William DeVore to practice psychology in the state of Iowa is hereby temporarily SUSPENDED, effective immediately.

* * *

With this Notice and pursuant to Iowa Code § 17A.12 and 645 Iowa Administrative Code 240.206, based upon a determination of probable cause by the Iowa Board of Psychology Examiners (the Board), the Respondent is also hereby notified that a Statement of Charges has been filed and that a disciplinary hearing regarding those charges has been scheduled to commence at 2:00 p.m., July 19, 1993, in the Fourth Floor Conference Room of the Lucas State Office Building, Des Moines, Iowa. At that time you may appear and defend. If you fail to appear and defend, Iowa Code § 17A.12(3) provides that the hearing may proceed and a decision rendered. You have the right to be represented by legal counsel at your own expense, present evidence on your behalf, and to examine and cross-examine witnesses. The authority for the hearing is Iowa Code §§ 272C.3 and 272C.6 and Board rules 240.201 through 240.212.

The hearing will concern whether or not disciplinary action should be taken concerning your license to practice as a psychologist based upon the following allegations:

8. The allegations of paragraphs 1 through 6.

9. By virtue of the allegations of paragraph 4, Respondent is in violation of Iowa Code § 147.55(3), § 272C.10(3), and Board rules 645 Iowa Admin. Code 240.212(1)(c), 240.212(2), 240.212(12), and 240.212(14) with reference to General Principles "C", "D", "E", and "F" and Ethical Standards 1.02, 1.20, 1.24, 5.05, 8.01, 8.02, and 8.03. Respondent is thereby subject to Board discipline.

10. The failure to provide patient records for Jane Doe leads to the inference that Respondent has either destroyed or neglected to maintain adequate and pertinent records on Jane Doe, and has therefore failed to comply with the standards of practice for providers of psychological services.

11. By virtue of the allegations of paragraph 10, Respondent is in violation of Iowa Code § 147.55(2) and (3) and § 272.10(2) and (3), and Board rules 645 Iowa Admin. Code 240.212.(1)(b) and (c), 240.212(6), and 240.212(12) with respect to Ethical Standards 1.23, 1.24, 5.03, 5.10, and 8.01. Further reference as to a violation of a standard of competency is to Clinical Psychologist Guideline 2.3.4, which provides in part that as a general matter of practice, a client record is to be maintained in full and intact for at least three years after the date of last contact. Respondent is thereby subject to Board discipline.

12. While refusing to provide information to the Board, Respondent did improperly and inappropriately provide confidential information regarding patient Jane Doe to a third person, D.M.

13. By virtue of the allegations of paragraph 12, Respondent is in violation of Iowa Code § 147.55(2) and (3), and § 272C.10(2) and (3), and Board rules 645 Iowa Admin. Code 240.212(1)(b) and (c), 240.212(2), and 240.212(14) with reference to General Principle "D" and Ethical Standards 5.02, 5.05, 5.06, and 8.01. Respondent is therefore subject to Board discipline.

14. By virtue of the allegations of paragraphs 5 and 6, Respondent is in violation of Iowa Code § 147.55(2) and (3), § 272C.10(2) and (3), and § 709.15 (1993), and Board rules 645 Iowa Admin. Code 240.212(1)(b) and (c), 240.212(2), 240.212(7)(f), and 240.212(14) with reference to General Principles "C" and "E" and Ethical Standards 1.17, 1.19, 2.01, 4.05, and 8.01. Respondent is therefore subject to Board discipline.

15. Commencing approximately June of 1991, Respondent, under the guise of therapy, engaged in conduct detrimental to Jane Doe's previously and subsequently diagnosed condition, including the application of personal philosophies not within the minimal standard of practice for psychologists.

16. By virtue of the allegations of paragraph 15, Respondent is in violation of Iowa Code § 147.55(2) and (3) and § 272C.10(2) and (3), and Board rules 645 Iowa Admin. Code 240.212(1)(b) and (c), 240.212(2), 240.212(6), and 240.212(14) with reference to General Principles "A", "B" and "E" and Ethical Standards 1.04, 1.05, 1.06, 1.14, 1.15, and 8.01. Respondent is thereby subject to Board discipline.

17. Respondent's espousal and use in treatment of personal philosophies contrary to the accepted standard of practice of psychology further provides grounds for discipline under Board rule 645 Iowa Admin. Code 240.212(3)(a) and 240.212(14) with reference to General Principle "A" and Ethical Standards 1.13, 2.02, and 8.01. Respondent is thereby subject to Board discipline.

* * *

You are also hereby notified that the hearing will be presided over by the Board which will be assisted by an administrative law judge from the Iowa Department of Inspections and Appeals.

Further, you are also hereby notified that the office of the Attorney General is responsible for representation of the public interest in these proceedings. Copies of all filings with the Board should be served on counsel at the following address: Lynette A. F. Donner, Assistant Attorney General, Hoover State Office Building, Des Moines, Iowa 50319. Ms. Donner's telephone number is: 515/281-8760.

Dated this 1st day of July, 1993.


Janet McDonough, Ph.D.
Acting Chairperson
Iowa Board of Psychology Examiners